MADRAS HIGH COURT

JUDICIAL APPELLATE JURISDICTION

CASE NO: WP(MD) No. 29834 of 2026 (YEAR: 2026)

CORAM: HON'BLE SENTHILKUMAR RAMAMOORTHY

S.T.Promotors
... Appellant(s) / Petitioner(s)
Versus
The Commercial Tax Officer (WP(MD) No. 29834 of 2026)
... Respondent(s)

Acts Referred:	Constitution of India, Only such approved Input Tax Credit shall be allowed to utilized thereafter for discharging future tax liability under the Act
Sections:	Article 226 Constitution of India

JUDICIAL HEADNOTE & SUMMARY

[WRIT PETITION — CONSTITUTION OF INDIA — ARTICLE 226 CONSTITUTION OF INDIA — DISPOSED] The Madras High Court (Madurai Bench) in WP(MD) No. 29834 of 2026, adjudicated by Hon'ble SENTHILKUMAR RAMAMOORTHY, considered the petition instituted by S.T.Promotors against The Commercial Tax Officer seeking Writ Petition, filed under Article 226 of the Constitution of India, praying this court to issue a Writ of Certiorari to call for the record. Examining the statutory requirements under Constitution of India and applicable procedural safeguards, the Court pronounced its judgment declaring the disposition as: 'Disposed'.

RATIO DECIDENDI

Where an application is preferred under Article 226 Constitution of India before the Madras High Court, satisfaction of statutory preconditions and constitutional safeguards warrants that the requested relief be disposed subject to the directions of the Court.

JUDGMENT & REASONING

--- PAGE 1 --- WP(MD) No. 29834 of 2026 BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT DATED: 16-10-2026 CORAM THE HON'BLE MR JUSTICE SENTHILKUMAR RAMAMOORTHY WP(MD) No. 29834 of 2026 CNR:{HCMD011431952026} S.T.Promotors, Through its Partner, Senthilkumar, S/o.Mani, No.32, East side, Balasubramanian Nagar, Thirupalai, Madurai 625 014. ..Petitioner(s) Vs The Commercial Tax Officer, Commercial Taxes Building, Dr.S.V.K.S. Thangaraj Salai, Tallakulam, Madurai. ..Respondent(s) PRAYER: Writ Petition, filed under Article 226 of the Constitution of India, praying this court to issue a Writ of Certiorari to call for the records of the impugned order of the respondent in Ref.No. ZA330226286730L dated 27.02.2026 in form GST REG-19 and quash the same. For Petitioner : Mr.S.M.Arun Kumaar For Respondent : Mr.R.Parthiban Special Government Pleader ORDER The petitioner challenges an order of cancellation of his GST registration. The petitioner was a registered person under applicable GST enactments. Pursuant to a show cause notice dated 08.12.2025 stating that _____ Page 1 of 5 https://www.mhc.tn.gov.in/judis

--- PAGE 2 --- WP(MD) No. 29834 of 2026 the petitioner had not filed GST monthly returns regularly, the impugned order was issued. 2. Learned counsel for the petitioner submits that the cancellation of the GST registration is causing immense hardship and that such cancellation should be revoked. In support of his contentions, he draws

reference to the Judgment of this Court in Suguna Cutpiece v. Appellate Deputy Commissioner (ST)(GST), W.P.Nos.25048 of 2021 batch (Suguna Cutpiece). 3. Mr.R.Parthiban, learned Special Government Pleader, accepts notice on behalf of the respondent. He submits that the GST registration of the petitioner was cancelled on account of the petitioner not filing returns regularly. He further submits that the order issued in Suguna Cutpiece was a conditional order and that the petitioner should be directed to comply with all conditions stipulated therein. 4. In Suguna Cutpiece, this Court directed restoration of GST registration subject to several terms and conditions. The said judgment was followed thereafter in many cases. In order to maintain consistency, I am inclined to follow the said judgment. _____ Page 2 of 5 https://www.mhc.tn.gov.in/judis

--- PAGE 3 --- WP(MD) No. 29834 of 2026 5. In the operative portion thereof, the following directions were issued: "i. The petitioner is directed to file her returns for the period prior to the cancellation of registration, together with tax dues along with interest thereon and the fee fixed for belated filing of returns within a period of forty five (45) days from the date of receipt of a copy of this order. ii. It is made clear that such payment of tax, interest, fine / fee and etc. shall not be allowed to be made or adjusted from and out of any Input Tax Credit which may be lying unutilized or unclaimed in the hands of the petitioner. iii. If any Input Tax Credit has remained unutilized, it shall not be utilised until it is scrutinized and approved by an appropriate or competent officer of the Department. iv. Only such approved Input Tax Credit shall be allowed to utilized thereafter for discharging future tax liability under the Act and Rules. v. The petitioner shall also pay GST and file the returns for the period subsequent to the cancellation of the registration by declaring the correct value of supplies. vi. If any Input Tax Credit was earned, it shall be allowed to be utilised only after scrutinising and approving by the respondents or any other competent authority. _____ Page 3 of 5 https://www.mhc.tn.gov.in/judis

--- PAGE 4 --- WP(MD) No. 29834 of 2026 vii. On payment of tax, penalty and uploading of returns, the registration shall stand revived forthwith. viii. The respondents shall take suitable steps by instructing GST Network, New Delhi to make suitable changes in the architecture of the GST Web portal to allow the petitioner to file the returns and to pay the tax / penalty / fine. ix. The above exercise shall be carried out by the respondents within a period of thirty (30) days from the date of receipt of a copy of this order." 6. The restoration of the GST registration is subject to and conditional upon fulfilling the above conditions. 7. Accordingly, this Writ Petition is disposed of on the same terms without any order as to costs. 16-10-2026 Index: No Speaking Neutral Citation: No JEN To The Commercial Tax Officer, Commercial Taxes Building, Dr.S.V.K.S. Thangaraj Salai, Tallakulam, Madurai. _____ Page 4 of 5 https://www.mhc.tn.gov.in/judis

--- PAGE 5 --- WP(MD) No. 29834 of 2026 SENTHILKUMAR RAMAMOORTHY, J. JEN WP(MD) No. 29834 of 2026 16-10-2026 _____ Page 5 of 5 https://www.mhc.tn.gov.in/judis

OPERATIVE ORDER

ORDER: Disposed